

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

These are the tentative rulings for the **THURSDAY, SEPTEMBER 24, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., WEDNESDAY, SEPTEMBER 23, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR CIVIL LAW AND MOTION MATTERS. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **THE HONORABLE MICHAEL W. JONES**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 3** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0061181 UNIFUND CCR v. NAVARRO, RACHAEL

Defendant's Motion to Set Aside Void Judgment, Quash Service of Summons, and Dismiss Action

On April 23, 2014, plaintiff filed a complaint against defendant that alleges causes of action for breach of contract and common counts.

On August 21, 2014, the court entered default against defendant. The proof of service accompanying the request for default listed the address of service as 202 Granite Park Court in Lincoln, California 95648. Moreover, it described the individual personally served as a 44 year old female Caucasian with brown hair, blue eyes, 5 feet and 5 inches tall, with blue eyes.

On August 28, 2014, the court entered default judgment against defendant.

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Defendant now timely moves to set aside the default and default judgment entered against her pursuant to Code of Civil Procedure section 473, subdivision (d) on the grounds the default and default judgment are void. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 225.)

Here, defendant presents evidence that she was never served with the summons and complaint. At the time of service, she resided in Walnut Creek rather than in Lincoln. Moreover, the address listed in the proof of service was her parent's former real property, that they sold in 2012. Additionally, defendant—at the time of service—was 25 years old, weighed 115lbs, and had hazel eyes. None of these match the description in the proof of service.

Accordingly, the default and default judgment are void as service was improper. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 214–15.) The default entered on August 21, 2014, and default judgment entered on August 28, 2014, are hereby set aside.

The court sets an Order to Show Cause re: Dismissal for **October 29, 2026, at 9:00 a.m. in Department 3.**

2. M-CV-0085411 RIEDEL, BRUCE v. COURTESY TOWING

Defendant New Alpha Three, Inc. dba D&M Courtesy Towing's Motion to Compel Depositions of Plaintiffs

Defendant's unopposed motion to compel plaintiffs Bruce Riedel and Susan Riedel's attendances at deposition is granted. (Code Civ. Proc., § 2025.450.) Plaintiffs Bruce Riedel and Susan Riedel shall appear for a deposition within 20 days after service of the order after hearing.

The request for sanctions is denied because it is unsupported by a declaration or other evidence.

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3. M-CV-0096718 BREIT WAVE MF SC OWNER v. PILGRIM, GABRIEL

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is requested, it shall be heard on **September 30, 2026, at 8:30 a.m. in Department 4**.

Defendant Gabriel Pilgrim's Motion to Set Aside Default and Default Judgment

Defendant Gabriel Pilgrim's unopposed motion to set aside the judgment entered against him on August 5, 2026, is granted. (Code Civ. Proc., § 473, subd. (b.) The judgment entered against him on August 5, 2026, is set aside.

A case management conference is set for **October 9, 2026, at 9:00 a.m. in Department 1** for the parties to select a new trial date. Department 1 is located at 101 Maple Street Auburn, CA 95603.

4. S-CV-0051441 BURKE, JAMES v. WOLFE CREEK CARE CENTER

Defendants Wolfe Creek Care Center, Bluebell Holdings, Foremost Healthcare Properties, California Opco, Opco Holdings, Bay Bridge CA Pit Al Partners, Providence Group, Jason Murray, and Mark Darrell Hancock's Motion to Dismiss

Defendants move to dismiss the action for delay of prosecution on the grounds no successor in interest has been appointed and no steps have been taken to prosecute the action or bring it to trial. (Code Civ. Proc., §§ 583.410, 583.420; Cal. Rules of Court, rules 3.1340, 3.1342.)

A court determining whether to exercise its discretion to dismiss an action for a plaintiff's delay in prosecution must consider all relevant matters, including

- (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;
- (2) The diligence in seeking to effect service of process;
- (3) The extent to which the parties engaged in any settlement negotiations or discussions;
- (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;
- (5) The nature and complexity of the case;

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- (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;
- (7) The nature of any extensions of time or other delay attributable to either party;
- (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;
- (9) Whether the interests of justice are best served by dismissal or trial of the case; and
- (10) Any other fact or circumstance relevant to a fair determination of the issue.

(Cal. Rules of Court, rule 3.1342, subd. (e).)

Additionally, the court must be guided by the policy that “a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. [Also,] the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.” (Code Civ. Proc., § 583.130; Cal. Rules of Court, rule 3.1342, subd. (e).)

Here, the factors and enumerated policies weigh against defendants. On September 15, 2026, the court granted Alyssa Burke’s ex parte application to be appointed as successor in interest, which resolved defendants’ chief concern. Moreover, Alyssa Burke’s declaration filed in support of her opposition establishes her diligence in attempting to secure representation as she contacted over 40 law firms before retaining counsel. Thus, any delay appears attributable to the difficulty in retaining counsel rather than Alyssa Burke herself.

Accordingly, defendants’ motion to dismiss is denied.

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5. S-CV-0052650 SPEED, JOELLE v. TRAVISMATHEW

Defendant's Motion for Summary Judgment

Preliminary Matters

The court preliminarily notes plaintiff's separate statement and objections to evidence do not follow the format requirements in California Rules of Court, Rules 3.1350 and 3.1354. The court admonishes plaintiff that future filings must adhere to the applicable filing requirements.

Defendant's requests for judicial notice are granted.

Both parties' objections are overruled in their entirety.

Ruling on Motion

Defendant moves for summary judgment as to plaintiff's complaint. A motion for summary judgment may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) In reviewing a motion for summary judgment, the trial court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 843.) Defendant, as the moving party, bears the initial burden of establishing that "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc. § 473c, subd. (p)(2).) Once that burden is met, the burden shifts to the "plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense." (*Ibid.*) Pursuant to the "golden rule" of summary judgments, "if it is not set forth in the separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff's complaint alleges a lone cause of action for premises liability against defendant. A premises liability cause of action has four elements: (1) duty; (2) breach (3) causation; and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.)

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Issue No. 1

Defendant first argues the alleged dangerous condition was open and obvious such that it did not owe plaintiff a duty of care.

Civil Code section 1714 establishes that a landowner is responsible for their want of ordinary care or skill in the management of their property. Accordingly, landowners “have a duty to maintain their premises in a reasonably safe condition. [Citations.] To comply with this duty, a person who controls property must inspect [the premises] or take other proper means to ascertain their condition and, if a dangerous condition exists that would have been discovered by the exercise of reasonable care, has a duty to give adequate warning of or remedy it.” (*Ramirez v. PK I Plaza 580 SC LP* (2022) 85 Cal.App.5th 252, 261 [internal quotation marks omitted].)

But, “if a danger is so obvious that a person could reasonably be expected to see it, then generally the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition. [Citation.] However, this is not true in all cases. It is foreseeable that even an obvious danger may cause injury, if the practical necessity of encountering the danger, when weighed against the apparent risk involved, is such that under the circumstances, a person might choose to encounter the danger.” (*Ibid.*)

Notably absent from defendant’s separate statement, and evidence in support thereof, is any information about the cable cover. For example, defendant does not provide the cable cover’s height, width, length, location, or other evidence establishing it is open and obvious to individuals. Therefore, defendant does not meet its burden to establish the cable cord was open and obvious.

Issue No. 2

Defendant next argues “Defendant Callaway Golf Company, through its TravisMathew store, was in compliance with applicable fire safety regulations regarding the cord at issue, negating any breach of duty.” Defendant in its reply papers then attempts to revise the noticed issue to state the fire inspection reports instead “establish that Defendant identified and corrected the specific condition then existing, an electrical cord running under the rug, by April 19, 2022, nearly two months before the incident.” It thus appears defendant argues it knew about the alleged dangerous condition but nonetheless remedied the alleged dangerous condition before plaintiff’s fall.

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Appellate courts find that “[b]ecause the owner is not the insurer of the visitor's personal safety [Citation], the owner's actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner's lack of knowledge is not a defense, to impose liability for injuries suffered by an invitee due to a defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises....” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206 [internal quotation marks omitted].)

Defendant again does not meet its burden. Defendant does not present evidence that remedying a potential fire hazard also remedies the alleged tripping hazard here. And, defendant does not establish the alleged “cord in the path of travel” is the same cord cover that plaintiff tripped on.

Issue No. 3

The court observes defendant raises its purported third issue three distinct ways across three different documents. Notably, the third time defendant alters the third issue is in defendant’s reply papers.

As articulated in the notice of motion, “Plaintiff did not trip on an exposed electrical cord and therefore Plaintiff is unable to create a triable question of fact as to whether any act or omission by Defendant caused or contributed to her alleged injuries.”

As articulated in the separate statement in support of its motion, “Summary Judgment should be granted because Plaintiff Joelle Speed did not trip on an exposed electrical cord, but rather on a fixed table leg or floor fixture, and therefore no act or omission on the part of Defendant TravisMathew, LLC caused or contributed to Plaintiff’s alleged injuries, and Plaintiff is unable to create a triable question of fact regarding this issue.”

Defendant then revises the issue in its replay papers and asserts “Defendant does not dispute that this is Plaintiff’s operative account [tripping over a cord cover] and withdraws any suggestion that Plaintiff must prove she tripped on a bare cord to defeat this motion. Defendant likewise withdraws the assertion, made in the heading to Issue No. 3 of its separate statement, that Plaintiff tripped ‘on a fixed table leg or floor fixture.’ No undisputed material fact supports that assertion and Defendant does not rely on it.”

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It thus appears defendant's third issue, after several revisions, is that plaintiff did not trip on a cord cover. Defendant does not meet its burden to establish plaintiff did not trip on a cord cover.

In sum, defendant does not meet its burden for any of the issues raised and therefore the motion for summary judgment is denied.

6. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to compel discovery is dropped from calendar as no moving papers were filed with the court.

7. S-CV-0054411 PANNU, PAUL v. DANILOVA, NADEZHDA

Defendants Artur Danulov and Nadezhda Danulova's Motion to Set Aside Default

Defendants Artur Danulov and Nadezhda Danulova's unopposed motion to set aside default and default judgment is granted. (Code Civ. Proc., § 473, subd. (b).) The default entered on January 7, 2026, and default judgment entered on June 1, 2026, are set aside.

Defendants Artur Danulov and Nadezhda Danulova shall file and serve their answer on or before **October 5, 2026**.

8. S-CV-0054641 ASSAD, QASSIM v. GENERAL MOTORS

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

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Here, plaintiff is the prevailing party because he achieved his litigation objectives and the parties stipulated to plaintiff's recovery of reasonable attorney's fees.

Defendant does not challenge this. Accordingly, the court must make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 4 to the declaration of Bryan M. Geoulla. The court observes instances where the work appears to be duplicative or unnecessary to the prosecution of the causes of action and instances where an excessive number of hours are billed for what should be relatively straight-forward tasks. The court determines that 21.5 hours are reasonable for Bryan Geoulla, 3.3 hours are reasonable for Michael Josephson, and .9 hours are reasonable for Mark Chivorchian.

The court must next address whether the requests for \$450 per hour by Bryan Geoulla, \$350 for Michael Josephson, and \$200 for Mark Chivorchian are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, "[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement." (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

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The court has carefully reviewed the declaration of counsel and finds the hourly rate of \$350 per hour by Bryan Geoulla, \$300 for Michael Josephson, and \$150 per hour by Mark Chivorchian are reasonable for similar legal services within Placer County. There is insufficient evidence that plaintiff needed to hire out-of-town counsel or that out-of-town counsel rates are proper. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609–10.) The court declines to issue a multiplier.

Defendant also challenges \$180.35 in costs for the “other” category. “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. . . . Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Moreover, “if the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred by the defendant.” (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 856.)

Here, the requested costs in the amount of \$180.35 for the “other” category is unsupported by evidence and thus not reasonably necessary to the litigation.

Accordingly, plaintiff’s motion is granted in the reduced amount of \$8,650 for attorney’s fees and costs in the amount of \$550.85 for a total amount of \$9,200.85.

9. S-CV-0056271 PLEKHANOVA, ADELINA v. FOUR SEASONS ESTATES

Defendant Granlibakken Management Company, Ltd.’s Demurrer to Plaintiff’s Complaint

Defendant demurs to the second, third, fourth, and fifth cause of action in plaintiff’s complaint on the grounds the complaint does not allege facts sufficient to state the second cause of action for public nuisance, third cause of action for breach of contract, fourth cause of action for intentional infliction of emotional distress, and fifth cause of action for fraudulent concealment. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff’s allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123

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Cal.App.3d 593, 604.) However, “[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits.” (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Second Cause of Action—Public Nuisance

A “public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civ. Code, § 3480.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a public nuisance cause of action because there are insufficient factual allegations that the alleged nuisance affects an entire community or neighborhood or any considerable number of persons. Accordingly, the demurrer is sustained with leave to amend as to the second cause of action.

Third Cause of Action—Breach of Contract

A breach of contract claim has the following essential elements: (1) contract, (2) plaintiff’s performance, (3) defendant’s breach, (4) damages. (*San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 439.) The formation of a contract, the first element for breach of a contract, requires “(1) parties capable of contracting; (2) their consent; (3) a lawful object; and (4) a sufficient cause of consideration.” (Civ. Code § 1550, subds. (1)–(4).) A contract is properly pleaded “either by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect.” (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 993.) Plaintiff may establish the legal effect of a contract by alleging “the substance of its relevant terms . . . [which] requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (*Ibid.*)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a breach of contract cause of action because there are insufficient factual allegations that a contract is properly pleaded. Accordingly, the demurrer is sustained with leave to amend as to the third cause of action.

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Fourth Cause of Action—Intentional Infliction of Emotional Distress

Plaintiffs must establish the following elements for an intentional infliction of emotional distress cause of action: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) Conduct is outrageous “when it is so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Id.* at p. 1050–51.) As such, liability “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” (*Id.* at p. 1051.) A cause of action for intentional infliction of emotional distress must plead with “great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community” to avoid a demurrer. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160–61.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state an intentional infliction of emotional distress cause of action because there are insufficient factual allegations that defendant engaged in extreme and outrageous conduct with the intent of causing, or reckless disregard of causing, emotional distress. Accordingly, the demurrer is sustained with leave to amend as to the fourth cause of action.

Fifth Cause of Action—Fraudulent Concealment

A fraudulent concealment cause of action requires plaintiffs to establish “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state a fraudulent concealment cause of action because there are insufficient factual allegations that defendant had a duty to disclose the alleged presence of bed bugs. Accordingly, the demurrer is sustained with leave to amend as to the fifth cause of action.

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In sum, the demurrer is sustained with leave to amend as to the second, third, fourth, and fifth causes of action. Plaintiffs shall file and serve an amended complaint on or before October 5, 2026.

Defendant Granlibakken Management Company, Ltd.'s Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is denied as moot in light of the court's ruling sustaining the demurrer with leave to amend.

10. S-CV-0056771 HAMMICK, JAMES v. VERNON, JEFFREY

The motion to compel initial special interrogatories, motion to compel initial requests for production of documents, and motion to deem requests for admissions admitted are continued to **November 12, 2026, at 8:30 a.m. in Department 3.**

11. S-CV-0057471 916 FLOORS v. TESLA

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Defendant's request for judicial notice is granted.

Ruling on Motion

Defendant moves to compel plaintiffs to arbitration.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

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A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the opposing party meets its burden of production, then the moving party must establish with admissible evidence a valid arbitration agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–66.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant meets its initial burden that an agreement to arbitrate exists between plaintiffs and defendant that involves interstate commerce. As such, the burden shifts to plaintiffs.

Plaintiffs do not oppose the motion to compel arbitration and thus do not meet their burden to establish any defenses.

Based on the foregoing, defendant made a sufficient showing of a valid and enforceable agreement to arbitrate between the parties and no defense to enforcement applies. Accordingly, defendant’s motion to compel arbitration is granted. The action shall be stayed pending completion of the arbitration. The court schedules this matter for an Order to Show Cause re status of arbitration on Thursday, February 18, 2027, at 9:00 a.m. in Department 3.